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বাংলাদেশ সুপ্রীমকোর্ট  
হাইকোর্ট বিভাগ

আপীল সম্পর্কিত  
ফৌজদারী

জেলা Narsingdi

(Under section 439 read with section 435 of the CrPC)

ফৌজদারী কার্যবিধি আইনের  
ধারার অধীনের  
নং

**Md. Rustam Ali Bhuiyan and others**

আবেদনকারী

মাধ্যম **Mr. S. M. Alim**, Advocate

বনাম

**The State**

Mr. Sujit Chatterjee, DAG with  
Ms. Farhana Afroze Runa, A. A. G with  
Mr. Abdul Aziz Masud, A. A. G. with  
Md. Shamim Khan, A. A. G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শান্তি ও দণ্ডাদেশ

**Present:**

*Mr. Justice S M Kuddus Zaman*

*And*

*Mr. Justice Md. Ali Reza*

আপীল আদালত

তারিখ

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| কাগজপত্র বা আদেশের<br>ক্রমিক নং | তারিখ                    | নোট এবং আদেশ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | স্বাক্ষর |
|---------------------------------|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|
|                                 | <b><u>23.01.2024</u></b> | <p>Let a Rule be issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 25.05.2023 passed by the learned Additional Sessions Judge, 3<sup>rd</sup> Court, Narsingdi in Criminal Appeal No.303 of 2019 allowing the appeal by sending the case for retrial by setting aside the judgment and order of acquittal to petitioners dated 12.05.2019 passed by the learned Chief Judicial Magistrate, Narsingdi in C. R. Case No.84 of 2017 corresponding to T. R. No.163 of 2017 under sections 406/420 of the Penal Code should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.</p> <p>The Rule is made returnable within 6(six) weeks from date.</p> <p>Pending hearing of the Rule, let operation of the impugned judgment and order dated 25.05.2023 be stayed till disposal of the Rule as far as the petitioner is concerned.</p> <p>Let this matter be placed in the list for hearing on 30.04.2024.</p> |          |

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